LEXTRIA RESEARCH

An Astraea Innovative Solutions, #21, 4th floor,
MUTBI, ARC, Manipal - 576104

TRADEMARK SERVICES PROPOSAL

Date: 26th June, 2026

To,
GOPALAN Enterprises

Subject: Scope of work for existing trademark along with timeline and quotation for trademark services

1. STATUS OF THE EXISTING TRADEMARK (CLASS 37)

The client holds an existing trademark application/registration for the logo mark in **Class 37** bearing application Number - Application No. **7074211** for the "**GOPALAN Built on Trust (label)**" mark, filed on **20/06/2025**, with a claimed usage date of **25/06/1991**. The application is currently at the "**Formalities Chk Pass**" status., filed concurrently with the corresponding word mark, asserting a prior usage claim dating back to 1991. Upon a comprehensive review of the case file, a material discrepancy has been identified: the documentary evidence submitted to the Trademark Office in support of this 1991 user claim demonstrates usage of the word mark exclusively, rather than the logo mark.

It appears prior counsel relied upon the same word-mark evidence to substantiate the prior-usage claims for both marks. Consequently, the logo mark's claimed date of first use is currently unsupported by logo-specific evidence on record.

2. RECOMMENDED ACTION PLAN

To mitigate these risks, we recommend the following

1. Immediately verify whether the specific logo (distinct from the word mark) was genuinely in use as of the claimed **1991** date, and ascertain whether logo-specific documentary evidence is available. The same shall be applicable for the new trademarks to be Filed under **Classes 35 and 36**.
2. Where genuine prior use can be substantiated for these specific services, the applications should be filed on a **Prior-Use (Affidavit)** basis. In the absence of such verifiable evidence, the applications must be filed on a "**Proposed to be Used**" basis.
3. Once the above is settled and confirmed, the filing shall be done for the new marks. Then expedited examination shall be filed for the new applications and the existing applications.

+91-9035685434 /
+91-8317385434

pranavbhat@lextria.in
info@lextria.in

3. THE TIMELINE FOR TRADEMARK FILING & PROSECUTION

The timeline for the trademark filing and prosecution is as follows: -

Sl. No.	Stage	Description	Timing / Notes
1	Preliminary research / search	Availability search conducted to assess conflicts with existing marks before filing.	Prior to filing within 1-2 days
2	Filing of trademark application	Application filed with the Trademark Office.	Upon completion of search within 3-4 days assuming the required documents for filing will be provided with 1-2 days.
3	Request for expedited examination	Filed alongside or shortly after the application to accelerate examination.	At/after filing within 1 day
4	Examination Report (ER) or acceptance & publication	The Trademark Office will communicate either an Examination Report (raising objections) or direct acceptance and publication in the Trademark Journal.	Within ~1 month of expedited examination request
4A	Reply to Examination Report	Response filed addressing objections raised in the ER, if any.	If ER is issued
4B	Hearing	Representation made before the Trademark Office if the matter is set down for a hearing.	If hearing is scheduled
4C	Written submissions	Post-hearing written submissions filed where applicable.	Where applicable
5	Acceptance & advertisement in Trademark Journal	Mark accepted and published in the Trademark Journal, triggering the opposition window.	Upon acceptance
6	Opposition period	Mandatory 4-month window during which third parties may file an opposition. If no	4 months from advertisement

		opposition is filed (or any opposition is resolved in the applicant's favour), the mark proceeds to registration.	
7	Registration	Certificate of registration is issued.	Post opposition period
8	Renewal	Registration must be renewed every 10 years to remain in force.	Every 10 years

STAGEWISE QUOTATION FOR TRADEMARK FILINGS AND PROCEEDINGS:

Part A - Existing Application: Logo Mark, Class 37

Sl. No	Particulars	Prof. Fees (₹)	Govt. Fee (₹)	Disbursement (₹)	Total (₹)
1.	Preparation and filing of a request to align / correct the user claim for the logo mark, including a fresh affidavit of user supported by logo-specific evidence, along with requisite statutory forms. (Subject to confirmation that the logo was in use as on the claimed date.)	7,500	900	1,600	10,000
2.	Request for expedited processing of the application under Rule 34, along with the requisite statutory form.	-	20,000		20,000
3.	Preparation and submission of a written response to the First Examination Report (FER) issued by the Trademark Office, along with requisite statutory forms.	7,500	-		
4.	Representation before the Trademark Office in response to queries raised during a scheduled hearing.	7,500	-		
5.	Preparation and filing of written submissions, along with requisite statutory forms.	7,500	-		

Part B - Fresh Application: Logo Mark, Class 35 and Class 36

Sl. No	Particulars	Prof. Fees (₹)	Govt. Fee (₹)	Disbursement (₹)	Total (₹)
1.	Trademark Search accompanied by a search report (Oral opinion provided at no additional charge.)	10,000	-	-	10,000
2a.	Filing of Trademark Application on a "proposed to be used" basis *(Individual/ Startup/ MSME)*	7,500	4,500	1,000	13,000
	OR				
2b.	Filing of Trademark Application via affidavit (claiming prior usage of the Trademark). *(Individual/ Startup/ MSME)*	11,500	4,500	1,500	16,500
3.	Request for expedited processing of the application under Rule 34, along with the requisite statutory form.	-	20,000	-	20,000
4.	Preparation and submission of a written response to the First Examination Report (FER), along with requisite statutory forms.	7,500	-	-	7,500
5.	Representation before the Trademark Office in response to queries raised during a scheduled hearing.	7,500	-	-	7,500
6.	Preparation and filing of written submissions, along with requisite statutory forms.	7,500	-	-	7,500

Notes

1. Government fees for large entities shall differ from those indicated above.
2. Miscellaneous compliance forms shall attract the applicable Government fee plus a professional fee of ₹4,000/- per form.
3. Payments are structured on a stage-wise basis; no payment shall be due for any stage deemed inapplicable.
4. Stamp duty, courier, and other charges shall be communicated separately as reimbursements / out of pocket expenses.
5. All listed fees are exclusive of GST. The applicable GST will be added when the invoice is issued for the services provided.